

Matter, but only to get my Liberty, which I had not the Wit to keep.

But I protest it was my full Intent, and for Gold; for Gold, for the Benefit of his Majesty and my self, and of those that ventur'd and went with me, with the rest of my Countrymen: But he that knew the Head of the Mine would not discover it, when he saw my Son was slain, but made away himself.

And then turning to the Earl of *Arundel*, he said, My Lord, being in the Gallery of my Ship, at my Departure, I remember your Honour took me by the Hand, and said, You would request one thing of me, which was, That whether I made a good Voyage or a bad, I should not fail, but to return again into *England*; which I then promised you, and gave you my Faith I would; and so I have.

To which my Lord answer'd, and said, It is true, I do very well remember it, they were the very last Words I spake unto you.

Another Slander was raised of me, That I would have gone away from them, and left them at *Guiana*.

But there were a great many worthy Men that accompanied me always; as my Serjeant-Major, *George Raleigh*, and divers others, which knew my Intent was nothing so.

Another Opinion was held of me, that I carried with me to Sea 16000 Pieces, and that was all the Voyage I intended, only to get Money into my Hands.

As I shall answer it before God, I had not in all the World in my Hands, or others to my Use, either directly or indirectly, above a hundred Pounds, whereof, when I went, I gave my Wife twenty-five Pounds thereof; but the Error thereof came, as I perceived, by looking over the Scrivener's Books, where they found the Bills of Adventure arising to a great Sum, so raised that false Report.

Only I will borrow a little time of Mr. Sheriffs to speak of one thing, that doth make my Heart to bleed to hear that such an Imputation should be laid upon me; for it is said, that I should be a Persecutor of the Death of the Earl of *Essex*, and that I stood in a Window over-against him when he suffer'd, and puffed out Tobacco in disdain of him. God I take to Witness, I shed Tears for him when he died; and as I hope to look God in the Face hereafter, my Lord of *Essex* did not see my Face when he suffer'd, for I was afar off in the Armory, where I saw him, but he saw not me.

I confess indeed I was of a contrary Faction, but I know my Lord of *Essex* was a noble Gentleman, and that it would be worse with me when he was gone; for I got the Hate of those which wished me well before,

and those that set me against him, afterwards set themselves against me, and were my greatest Enemies, and my Soul hath many times been grieved that I was not nearer him when he died; because, as I understood afterwards, that he asked for me at his Death, to have been reconciled unto me.

And these be the material Points I thought good to speak of, and I am now at this Instant to render up an Account to God; and I protest, as I shall appear before him, this that I have spoken is true, and I hope I shall be believed.

Then a Proclamation being made, that all Men should depart the Scaffold, he prepared himself for Death; giving away his Hat, his Cap, with some Money, to such as he knew, that stood near him.

And then taking his leave of the Lords, Knights, Gentlemen, and others of his Acquaintance, and amongst the rest, taking his leave of my Lord of *Arundel*, he thanked him for his Company, and intreated him to desire the King that no scandalous Writing to defame him might be published after his Death; saying further unto him, I have a long Journey to go, and therefore I will take my leave.

And then putting off his Doublet and Gown, desired the Headsmen to shew him the Ax; which not being suddenly granted unto him, he said, I prithee let me see it, dost thou think that I am afraid of it? So it being given unto him, he felt along upon the Edge of it, and smiling, spake unto Mr. Sheriff, saying, This is a sharp Medicine, but it is a Physician that will cure all Diseases.

Then going to and fro upon the Scaffold on every Side, he intreated the Company to pray to God to give him Strength.

Then having ended his Speech, the Executioner kneeled down and asked him Forgiveness; the which laying his Hand upon his Shoulder he forgave him.

Then being asked which Way he would lay himself on the Block, he made Answer and said, So the Heart be straight, it is no matter which way the Head lieth: So laying his Head on the Block, his Face being towards the East, the Headsmen throwing down his own Cloak, because he would not spoil the Prisoner's Gown, he giving the Headsmen a Sign when he should strike, by lifting up his Hands, the Executioner struck off his Head at two Blows, his Body never shrinking nor moving. His Head was shewed on each Side of the Scaffold, and then put into a red Leather Bag, and his wrought Velvet Gown thrown over it, which was afterwards conveyed away in a Mourning Coach of his Lady's.

XIX. *The Trials of Robert Winter, Thomas Winter, Guy Fawkes, John Grant, Ambrose Rookwood, Robert Keyes, Thomas Bates, and Sir Everard Digby, at Westminster for High-Treason, being Conspirators in the Gunpowder-Plot.* 27 Jan. 1605. 3 Jac. I.

The COMMISSIONERS were,

The Earl of Nottingham.
The Earl of Suffolk.
The Earl of Worcester.
The Earl of Devonshire.
The Earl of Northampton.

The Earl of Salisbury.
The Lord Chief Justice of England, Sir John Popham.
The Lord Chief Baron of the Exchequer, Thomas Fleming.
Sir Peter Warburton, Knight, one of the Justices of the Common-Pleas.

The Effect of the Indictment.

THAT whereas our Sovereign Lord the King had, by the Advice and Assent of his Council, for divers weighty and urgent Occasions concerning his Majesty, the State, and Defence of the Church and Kingdom of *England*, appointed a Parliament to be holden at his City of *Westminster*; That *Henry Garnet*, Superior of the Jesuits within the Realm of *England*, (called also by the several names of *Wally*, *Darcy*, *Roberts*, *Farmer*, and *Henry Philips*) *Oswald Tesmond* Jesuit, otherwise called *Oswald Greenwell*, *John Gerrard* Jesuit, (called also by the several names of *Lee* and *Brooke*) *Robert Winter*, *Thomas Winter*, Gentlemen, *Guy Fawkes* Gent. otherwise called *Guy Johnson*, *Robert Keyes* Gent. and *Thomas Bates* Yeoman, late Servant to *Robert Catesby* Esquire; together with the said *Robert Catesby*, and *Thomas Percy* Esquires, *John Wright* and *Christopher Wright* Gentlemen, in open Rebellion and Insurrection against his Majesty, lately slain, and *Francis Tresham* Esq; lately dead; as false Traitors against our said Sovereign Lord the King, did traitorously meet and assemble themselves together; and being so met, the said *Henry Garnet*, *Oswald Tesmond*, *John Gerrard*, and other Jesuits, did maliciously, falsely, and traitorously move and persuade as well the said *Thomas Winter*, *Guy Fawkes*, *Robert Keyes*, and *Thomas Bates*, as the said *Robert Catesby*, *Thomas Percy*, *John Wright*, *Christopher Wright*, and *Francis Tresham*, That our said Sovereign Lord the King, the Nobility, Clergy, and whole Commonalty of the Realm of *England*, (Papists excepted) were Hereticks; and that all Hereticks were accursed and excommunicate; and that none Heretick could be a King; but that it was lawful and meritorious to kill our said Sovereign Lord the King, and all other Hereticks within this Realm of *England*, for the Advancing and Enlargement of the pretended and usurped Authority and Jurisdiction of the Bishop of *Rome*, and for the restoring of the supersti-

tious *Romish* Religion within this Realm of *England*. To which traitorous Persuasions, the said *Thomas Winter*, *Guy Fawkes*, *Robert Keyes*, *Thomas Bates*, *Robert Catesby*, *Thomas Percy*, *John Wright*, *Christopher Wright*, and *Francis Tresham*, traitorously did yield their Assents: And that thereupon the said *Henry Garnet*, *Oswald Tesmond*, *John Gerrard*, and divers other Jesuits; *Thomas Winter*, *Guy Fawkes*, *Robert Keyes*, and *Thomas Bates*, as also the said *Robert Catesby*, *Thomas Percy*, *John Wright*, *Christopher Wright*, and *Francis Tresham*, traitorously amongst themselves did conclude and agree, with Gunpowder, as it were with one Blast; suddenly, traitorously and barbarously to blow up and tear in pieces our said Sovereign Lord the King, the excellent, virtuous, and gracious Queen *Anne*, his dearest Wife, the most noble Prince *Henry*, their eldest Son, and future Hope and Joy of *England*; and the Lords Spiritual and Temporal, the Reverend Judges of the Realm, the Knights, Citizens and Burgeses of Parliament, and divers other faithful Subjects and Servants of the King in the said Parliament, for the Causes aforesaid to be assembled in the House of Parliament; and all them, without any respect of Majesty, Dignity, Degree, Sex, Age or Place, most barbarously, and more than beastly, traitorously and suddenly to destroy and swallow up. And further did most traitorously conspire and conclude among themselves, That not only the whole Royal Issue-Male of our said Sovereign Lord the King should be destroyed and rooted out; but that the Persons aforesaid, together with divers other false Traitors, traitorously with them to be assembled, should surprize the Persons of the noble Ladies *Elizabeth* and *Mary*, Daughters of our said Sovereign Lord the King, and falsely and traitorously should proclaim the said Lady *Elizabeth* to be Queen of this Realm: And thereupon should publish a certain traitorous Proclamation in the name of the said Lady *Elizabeth*; wherein, as it was especially agreed by and between the said Conspirators, That no mention should be made at the first, of the alteration of Religion established with

within this Realm of England; neither would the said false Traitors therein acknowledge themselves to be Authors, or Actors, or Devisers of the aforesaid most wicked and horrible Treasons, until they had got sufficient Power and Strength for the assured Execution and Accomplishment of their said Conspiracy and Treason; and that then they would avow and justify the said most wicked and horrible Treasons, as Actions that were in the number of those, *Quæ non laudantur, nisi peracta*, which be not to be commended before they be done: but by the said feign'd and traitorous Proclamation they would publish, That all and singular Abuses and Grievances within this Realm of England, should, for satisfying of the People, be reform'd. And that as well for the better concealing, as for the more effectual accomplishing of the said horrible Treasons, as well the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright, and Francis Tresham*, by the traitorous Advice and Procurement of the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and other Jesuits, traitorously did further conclude and agree, that as well the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright, and Francis Tresham*, thereupon severally and traitorously should receive several corporal Oaths upon the holy Evangelists, and the Sacrament of the Eucharist, That they the Treasons aforesaid would traitorously conceal and keep secret, and would not reveal them, directly or indirectly, by Words or Circumstances, nor ever would desist from the Execution and final Accomplishment of the said Treasons, without the consent of some three of the aforesaid false Traitors first in that behalf traitorously had: And that thereupon as well the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as the said *Robert Catesby, Thomas Percy, John Wright, Christ. Wright, and Francis Tresham*, did traitorously take the said several corporal Oaths severally, and did receive the Sacrament of the Eucharist aforesaid, by the Hands of the said *Henry Garnet, John Gerrard, Oswald Tesmond*, and other Jesuits. And further, that the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, together with the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright, and Francis Tresham*, by the like traitorous Advice and Counsel of the said *Henry Garnet, John Gerrard, Oswald Tesmond*, and other Jesuits, for the more effectual compassing and final Execution of the said Treasons, did traitorously among themselves conclude and agree to dig a certain Mine under the said House of Parliament, and there secretly, under the said House, to bestow and place a great Quantity of Gunpowder; and that according to the said Traitorous Conclusion, the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, together with the said *Robert Catesby, Thomas Percy, John Wright, and Christopher Wright*, afterwards secretly, not without great labour and difficulty, did dig and make the said Mine unto the midst of the Foundation of the Wall of the said House of Parliament, the said Foundation being of the thickness of three yards, with a traitorous Intent to bestow and place a great Quantity of Gunpowder in the Mine aforesaid, so as aforesaid traitorously to be made for the traitorous accomplishing of their traitorous Purposes aforesaid. And that the said *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, together with the said *Robert Catesby, Thomas Percy, John Wright, and Christopher Wright*, finding and perceiving the said Work to be of great difficulty, by reason of the Hardness and Thickness of the said Wall; and understanding a certain Cellar under the said House of Parliament, and adjoining to a certain House of the said *Thomas Percy*, then to be letten to farm for a yearly Rent, the said *Thomas Percy*, by the traitorous Procurement, as well of the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and other Jesuits, *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as of the said *Robert Catesby, John Wright, and Christopher Wright*, traitorously did hire the Cellar aforesaid for a certain yearly Rent and Term: and then those Traitors did remove twenty Barrels full of Gunpowder out of the said House of the said *Thomas Percy*, and secretly and traitorously did bestow and place them in the Cellar aforesaid, under the said House of Parliament, for the traitorous effecting of the Treason, and traitorous Purposes aforesaid. And that afterwards the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and other Jesuits, *Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, together with the said *Robert Catesby, Thomas Percy, John Wright, and Christ. Wright*, traitorously did meet with *Robert Winter, John Grant, and Ambrose Rookwood*, and *Francis Tresham*, Esquires; and traitorously did impart to the said *Robert Winter, John Grant, Ambrose Rookwood*, and *Francis Tresham*, the Treasons, traitorous Intentions and Purposes aforesaid; and did require the said *Robert Winter, John Grant, Ambrose Rookwood*, and *Francis Tresham*, to join themselves as well with the said *Henry Garnet, Oswald Tesmond, John Gerrard, Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as with the said *Robert Catesby, Thomas Percy, John Wright, and Christopher Wright*, in the Treasons, traitorous Intentions and Purposes aforesaid; and traitorously to provide Horse, Armour, and other Necessaries, for the better Accomplishment and effecting of the said Treasons. To which traitorous Motion and Request, the said *Robert Winter, John Grant, Ambrose Rookwood*, and *Francis Tresham*, did traitorously yield their Assents, and as well with the said *Henry Garnet, Oswald Tesmond, John Gerrard, Robert Winter, Thomas Winter, Guy Fawkes, Robert Keyes, and Thomas Bates*, as with the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright, and Francis Tresham*, in the said Treasons, traitorous Intentions and Purposes aforesaid, traitorously did adhere and unite themselves: And thereupon several corporal Oaths, in form aforesaid, traitorously did take, and the Sacrament of the Eucharist, by the hands of the said Jesuits did receive, to such Intent and Purpose, as is aforesaid; and Horses, Armour, and other Necessaries for the better effecting of the said Treasons, according to their traitorous Assents aforesaid, traitorously did provide. And that afterwards all the said false Traitors did traitorously provide, and bring into the Cellar aforesaid ten other Barrels full of Gunpowder, newly bought, fearing lest the former Gunpowder, so as aforesaid bestow'd and placed there, was become dankish; and the said several Quantities of Gunpowder aforesaid, with Billets and Faggots, lest they should be spy'd, secretly and traitorously did cover. And that afterwards the said false Traitors traitorously provided, and brought into the Cellar aforesaid, four Hogsheds full of Gunpowder, and laid divers great Iron Bars and Stones upon the said four Hogsheds, and the aforesaid other Quantities of Gunpowder: And the said Quantities of Gunpowder, Bars, and Stones,

with Billets and Faggots, lest they should be espy'd, secretly and traitorously did likewise cover. And that the said *Guy Fawkes*, afterwards, for a full and final Accomplishment of the said Treasons, traitorous Intentions and Purposes aforesaid, by the traitorous Procurement, as well of the said *Henry Garnet, Oswald Tesmond, John Gerrard*, and other Jesuits, *Robert Winter, Thomas Winter, Robert Keyes, Thomas Bates, John Grant, and Ambrose Rookwood*, as of the said *Robert Catesby, Thomas Percy, John Wright, Christopher Wright, and Francis Tresham*, traitorously had prepared, and had upon his Person Touchwood and Match, therewith traitorously to give fire to the several Barrels, Hogsheds, and Quantities of Gunpowder aforesaid, at the time appointed for the Execution of the said horrible Treasons. And further, that after the said horrible Treasons, were, by the great Favour and Mercy of God, in a wonderful manner discover'd, not many hours before it should have been executed, as well the said *Henry Garnet, Oswald Tesmond, John Gerrard, Robert Winter, Thomas Winter, Robert Keyes, Thomas Bates, John Grant, and Ambrose Rookwood*, as the said *Robert Catesby, Thomas Percy, John Wright, and Christopher Wright*, traitorously did fly and withdraw themselves, to the intent traitorously to stir up and procure such Popish Persons, as they could, to join with them in actual, publick, and open Rebellion against our said Sovereign Lord the King; and to that end did publish divers feigned and false Rumours; that the Papists Throats should have been cut; and that thereupon divers Papists were in Arms, and in open, publick, and actual Rebellion against our said Sovereign Lord the King, in divers Parts of this Realm of England.

To this Indictment they all pleaded, Not guilty; and put themselves upon God and the Country.

Then did Sir *Edward Philips*, Kt. his Majesty's Setjeant at Law, open the Indictment to this effect, as followeth.

The matter that is now to be offer'd to you my Lords the Commissioners, and to the Trial of you the Knights and Gentlemen of the Jury, is Matter of Treason; but of such Horror, and monstrous Nature, that before now,

The Tongue of Man never deliver'd,

The Ear of Man never heard,

The Heart of Man never conceited,

Nor the Malice of hellish or earthly Devil ever praesised.

For, if it be abominable to murder the least;

If to touch God's Anointed be to oppose themselves against God;

If (by Blood) to subvert Princes, States and Kingdoms, be hateful to God and Man, as all true Christians must acknowledge:

Then, how much more than too too monstrous shall all Christian Hearts judge the Horror of this Treason; to murder and subvert

Such a King,

Such a Queen,

Such a Prince,

Such a Progeny,

Such a State,

Such a Government,

So complete and absolute,

That God approves,

The World admires,

All true English Hearts honour and reverence,

The Pope and his Disciples only envies and maligns?

The Proceeding wherein, is properly to be divided into three general Heads.

First, Matter of Declaration.

Secondly, Matter of Aggravation.

Thirdly, Matter of Probation.

My self am limited to deal only with the Matter of Declaration, and that is contain'd within the Compass of the Indictment only.

For the other two, I am to leave to him to whose Place it belongeth.

The Substance of which Declaration consisteth in four Parts.

First, In the Persons and Qualities of the Conspirators.

Secondly, In the Matter conspired.

Thirdly, In the Mean and Manner of the Proceeding and Execution of the Conspiracy.

And fourthly, Of the End and Purpose why it was so conspired.

As concerning the first, being the Persons; they were, *Garnet, Gerrard, Tesmond*, Jesuits not then taken. *Thomas Winter, Guy Fawkes, Robert Keyes, Thomas Bates, Everard Digby, Ambrose Rookwood, John Grant, Robert Winter*, at the Bar. *Robert Catesby, Thomas Percy, John Wright, Christopher Wright*, slain in Rebellion. *Francis Tresham*, lately dead: All grounded Romanists and corrupted Scholars of so irreligious and traitorous a School.

As concerning the second, which is the Matter conspired; it was

First, To deprive the King of his Crown.

Secondly, To murder the King, the Queen, and the Prince.

Thirdly, To stir Rebellion and Sedition in the Kingdom.

Fourthly, To bring a miserable Destruction amongst the Subjects.

Fifthly, To change, alter, and subvert the Religion here established.

Sixthly, To ruinate the State of the Commonwealth, and to bring in Strangers to invade it.

As concerning the third, which is the Mean and Manner how to compass and execute the same; they did all conclude,

First, That the King, and his People (the Papists excepted) were Hereticks.

Secondly, That they were all cursed, and excommunicated by the Pope.

Thirdly, That no Heretick could be King.

Fourthly, That it was lawful and meritorious to kill and destroy the King, and all the said Hereticks.

The Mean to effect it, they concluded to be, that,

First, The King, the Queen, the Prince, the Lords Spiritual and Temporal, the Knights and Burgesses of the Parliament, should be blown up with Powder.

Secondly, That the whole Royal Issue Male should be destroy'd.

Thirdly, That they would take into their Custody *Elizabeth* and *Mary* the King's Daughters, and proclaim the Lady *Elizabeth* Queen.

Fourthly, That they should feign a Proclamation in the name of *Elizabeth*, in which no mention should be made of Alteration of Religion,

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not

nor that they were Parties to the Treason, until they had raised Power to perform the same; and then to proclaim, All Grievances in the Kingdom should be reformed.

That they also took several Oaths, and receiv'd the Sacrament; First, for Secrecy; Secondly, for Prosecution; except they were discharg'd thereof by three of them.

That after the Destruction of the King, the Queen, the Prince, the Royal Issue Male, the Lords Spiritual and Temporal, the Knights and Burgeses, they should notify the same to foreign States; and thereupon Sir Edmund Baynam an attainted Person of Treason, and styling himself Prime of the damned Crew, should be sent and make the same known to the Pope, and crave his Aid: an Embassador fit both for the Message and Persons, to be sent betwixt the Pope and the Devil.

That the Parliament being prorogued till the 7th of February, they in December made a Mine under the House of Parliament, purposing to place their Powder there; but the Parliament being then further adjourned till the 3d of October, they in Lent following hired the Vault, and placed therein 20 Barrels of Powder.

That they took to them, Robert Winter, Grant, and Rookwood, giving them the Oaths and Sacrament as aforesaid, as to provide Munition.

July 20. They laid in more ten Barrels of Powder, laying upon them divers great Bars of Iron, and pieces of Timber, and great massy Stones, and covered the same with Faggots, &c.

September 20. They laid in more 4 Hogheads of Powder, with other Stores and Bars of Iron thereupon.

November 4. (The Parliament being prorogued to the 5th) at 11 a clock at Night, Fawkes had prepared (by the procurement of the rest) Touchwood and Match, to give fire to the Powder the next Day.

That the Treason being miraculously discovered, they put themselves, and procured others to enter into open Rebellion; and gave out most untruly, It was for that the Papists Throats were to be cut.

* Sir Edward Coke. * Attor. General. It appeareth to your Lordships, and the rest of this most honourable and grave Assembly, even by that which Mr. Serjeant hath already opened, that these are the greatest Treasons that ever were plotted in England, and concern the greatest King that ever was of England. But when this Assembly shall further hear, and see discovered the Roots and Branches of the same, not hitherto published, they will say indeed, *Quis hæc posteris sic narrare poterit, ut facta non ficta esse videantur?* That when these things shall be related to Posterity, they will be reputed matters feigned, not done. And therefore in this so great a Cause, upon the Carriage and Event whereof the Eye of all Christendom is at this day bent; I shall desire that I may with your Patience be somewhat more copious, and not so succinct, as my usual manner hath been; and yet will I be no longer than the very matter it self shall necessarily require. But before I enter into the particular Narration of this Cause, I hold it fit to give Satisfaction to some, and those well affected amongst us, who have not only marvelled, but grieved, that no speedier Expedition hath been used in these Proceedings, considering the Monstrousness and continual Horror of this so desperate a Cause.

1. It is, *Ordo Naturæ*, agreeable to the Order of Nature, that things of great weight and magnitude should slowly proceed, according to that of the Poet, *Tarda solet magnis rebus adesse fides*. And surely of these things we may truly say, *Nunquam ante dies nostros talia acciderunt*; neither hath the Eye of Man seen, nor the Ear of Man heard the like things to these.

2. *Veritas temporis filia*, Truth is the Daughter of Time; especially in this Case, wherein by timely and often Examinations, First, Matters of greatest moment have been lately found out. Secondly, Some known Offenders, and those capital, but lately, apprehended. Thirdly, Sundry of the principal Arch-Traitors before unknown, now manifested, as the Jesuits. Fourthly, Heretical, treasonable and damnable Books lately found out; one of Equivocation, and another, *De officio Principis Christiani*, of Francis Tresham's.

3. There have been already twenty and three several days spent in Examinations.

4. We should otherwise have hanged a Man unattainted, for Guy Fawkes passed for a time under the name of John Johnson: So that if by that name greater expedition had been made, and he hanged, though we had not missed of the Man, yet the Proceeding would not have been so orderly or justifiable.

5. The King out of his Wisdom and great Moderation, was pleased to appoint this Trial in time of Assembly in Parliament, for that it concerned especially those of the Parliament.

Now touching the Offences themselves, they are so exorbitant and transcendent, and aggregated of so many bloody and fearful Crimes, as they cannot be aggravated by an Inference, Argument or Circumstance whatsoever; and that in three respects:

First, Because this Offence is *Præ impressio*, and therefore *sine Nomine*, without any name which might be *adequatum*, sufficient to express it, given by any Legist, that ever made a writ of any Laws. For the highest Treason that all they could imagine, they called it only *Crimen læsæ Majestatis*, the violating of the Majesty of the Prince. But this Treason doth want an apt name, as tending not only to the Hurt, but to the Death of the King; and not the Death of the King only, but of his whole Kingdom, *Non Regis sed Regni*, that is, to the Destruction and Dissolution of the Frame and Fabrick of this antient, famous, and ever-flourishing Monarchy; even the Deletion of our whole Name and Nation: And therefore hold not thy Tongue, O God, keep not still silence, refrain not thy self, O God; for lo thine Enemies make a murmuring, and they that hate thee have lift up their Heads: They have said, Come, and let us root them out, that they be no more a People, and that the Name of Israel may be no more in remembrance. Psal. 83. 1, 2, 3, 4, 5.

Secondly, It is, *Sine exemplo*, beyond all Examples, whether in Fact or Fiction, even of the Tragick Poets, who did beat their Wits to represent the most fearful and horrible Murders.

Thirdly, It is, *Sine modo*, without all measure or stint of Iniquity; like a Mathematical Line, which is, *divisibilis in semper divisibilia*, infinitely divisible.

It is Treason to imagine or intend the Death of the King, Queen, or Prince.

For Treason is like a Tree whose Root is full of Poison, and lieth

secret and hid within the Earth, resembling the Imagination of the Heart of Man, which is so secret as God only knoweth it.

Now the Wisdom of the Law provideth for the blasting and nipping, both of the Leaves, Blossoms, and Buds which proceed from this Root of Treason; either by Words, which are like to Leaves, or by some overt Act, which may be resembled to Buds or Blossoms, before it cometh to such Fruit and Ripeness, as would bring utter Destruction and Desolation upon the whole State.

It is likewise Treason to kill the Lord Chancellor, Lord Treasurer, or any Justice of the one Bench or other; Justices of Assize, or any other Judge mentioned in the Statute of 25 Edw. III. sitting in their Judicial Places, and exercising their Offices. And the Reason is, for that every Judge so sitting by the King's Authority, representeth the Majesty and Person of the King; and therefore it is *Crimen læsæ Majestatis*, to kill him, the King being always in Judgment of Law present in Court. But in the high Court of Parliament, every Man by virtue of the King's Authority, by Writ under the Great Seal, hath a judicial Place; and so consequently the killing of every of them had been a several Treason, and *Crimen læsæ Majestatis*. Besides that to their Treasons were added open Rebellion, Burglary, Robbery, Horse-stealing, &c. So that this Offence is such, as no Man can express it, no Example pattern it, no Measure contain it.

Concerning foreign Princes; there was here a Protestation made for the clearing of them from all Imputation and Aspersions whatsoever.

First. For that whilst Kingdoms stood in Hostility, hostile Actions are holden honourable and just.

Secondly, It is not the King's Serjeant, Attorney, or Solicitor, that in any sort touch or mention them: For we know that great Princes and Personages are reverently and respectfully to be spoken of; and that there is *Lex in sermone tenenda*. But it is Fawkes, Winter, and the rest of the Offenders, that have confessed so much as hath been said: And therefore the King's Counsel Learned doth but repeat the Offender's Confession, and charge or touch no other Person. They have also slander'd unjustly our great Master King James, which we only repeat, to shew the Wickedness and Malice of the Offenders.

Thirdly, So much as is said concerning foreign Princes, is so woven into the matter of the Charge of these Offenders, as it cannot be sever'd or singled from the rest of the matter; so as it is inevitable, and cannot be pretermitted.

Now as this Powder-Treason is in itself prodigious and unnatural, so it is in the Conception and Birth most monstrous, as arising out of the dead Ashes of former Treasons. For it had three Roots, all planted and watered by Jesuits, and English Romish Catholics: The first Root in England, in December and March; the second in Flanders, in June; the third in Spain, in July. In England it had two Branches, one in December was twelve Months before the death of the late Queen of blessed Memory; another in March wherein she died.

First in December Anno Dom. 1601. do Henry Garnet Superior of the Jesuits in England, Robert Tesmond Jesuit, Robert Catesby (who was *bono jubaio & versuto ingenio & profunda perfidia*) together with Francis Tresham and others, in the names, and for the behalf of all the English Romish Catholics, imploy Thomas Winter into Spain, as for the general good of the Romish Catholick Cause; and by him doth Garnet write his Letters to Father Creswell, Jesuit residing in Spain, in that behalf. With Thomas Winter doth Tesmond, alias Greenway the Jesuit, go as an Associate and Confederate in that Conspiracy. The Message (which was principally committed unto the said Winter) was, that he should make a Propolition and Request to the King of Spain, in the behalf and names of the English Catholics, That the King would send an Army hither into England, and that the Forces of the Catholics in England should be prepared to join with him, and do him Service: And further, that he should move the King of Spain to bestow some Pensions here in England, upon sundry Persons Catholics, and devoted to his Service: And moreover, to give Advertisement, that the said King of Spain, making use of the general Discontentment that young Gentlemen and Soldiers were in, might no doubt, by relieving their Necessities, have them all at his Devotion.

And because that in all Attempts upon England, the greatest Difficulty was ever found to be the Transportation of Horses; the Catholics in England would assure the King of Spain to have always in readiness for his Use and Service, 1500 or 2000 Horses, against any occasion or enterprise. Now Thomas Winter undertaking this Negotiation, and with Tesmond the Jesuit coming into Spain, by means of Father Creswell the Legier Jesuit there, as hath been said, had readily Speech with Don Pedro Francesca second Secretary of State, to whom he imparted his Message, as also to the Duke of Lerma; who assured him, that it would be an Office very grateful to his Master, and that it should not want his best Furtherance.

Concerning the Place for landing of the King of Spain's Army, which from the English Romish Catholics he desired might be sent to invade the Land; it was resolved, that if the Army were great, then Essex and Kent were judged fittest, (where note by the way, who was then Lord Warden of the Cinque Ports:) If the Army were small, and trusted upon Succour in England, then Milford-haven was thought more convenient.

Now there being at that time Hostility betwixt both Kingdoms, the King of Spain willingly embraced the Motion, saying, that he took the Message from the Catholics very kindly, and that in all things he would respect them with as great Care as his proper Castilians. But for his further answer, and full dispatch, Thomas Winter was appointed to attend the Progress. In the end whereof, being in Summer time, Count Miranda gave him this answer in the behalf of his Master, That the King would bestow 100000 Crowns to that use, half to be paid that Year, and the rest the next Spring following; and withal required that we should be as good as our Promise, for the next Spring he meant to be with us, and set foot in England. And lastly, he desired on the King's behalf, of Winter, that he might have certain Advertisement and Intelligence, if so it should in the mean time happen that the Queen did die. Tho. Winter laden with these Hopes, returns into England about a Month before Christmas, and delivered answer of all that had passed, to Henry Garnet, Robert Catesby, and Francis Tresham. But soon after set that glorious Light, her Majesty died: *Miracano; Sol occubuit, Nox nulla secuta est*.

Presently after whose Death was Christopher Wright, another Messenger sent over into Spain by Garnet, (who likewise did write by him to Creswell, for the furtherance of the Negotiation) Catesby and

and *Tresham*, in the name and behalf of all the Romish Catholics in England; as well to carry News of her Majesty's Death, as also to continue the aforesaid Negotiation for an Invasion and Pensions, which by *Tho. Winter* had before been dealt in. And in the Spanish Court, about two Months after his arrival there, doth *Christopher Wright* meet with *Guy Fawkes*; who upon the 22d of June was employed out of *Flanders* from *Brussels* by Sir *William Stanley*, *Hugh Owen*, (whose Finger hath been in every Treason which hath been of late Years detected) and *Baldwyn* the Legier Jesuit in *Flanders*; from whom likewise the said *Fawkes* carried Letters to *Creswell* in *Spain*, for the countenancing and furtherance of his Affairs.

Now the End of *Fawkes*'s imployment was, to give Advertisement to the King of *Spain*, how the King of *England* was like to proceed rigorously with the Catholics, and to run the same course which the late Queen did; and withal to intreat that it would please him to send an Army into *England* to *Milford-haven*, where the Romish Catholics would be ready to assist him: and then the Forces that should be transported in *Spinola*'s Gallies, should be landed where they could most conveniently. And these their several Messages did *Christopher Wright* and *Guy Fawkes* in the end intimate and propound to the King of *Spain*. But the King as then very honourably answered them both, that he would not in any wise further listen to any such Motion, as having before dispatched an Embassy into *England*, to treat concerning Peace. Therefore this Course by foreign Forces failing, they fell to the Powder-Plot, *Catesby* and *Tresham* being in at all; in the Treason of the Earl of *Essex*, in the Treason of *Watson* and *Clarke* Seminary Priests, and also in this of the Jesuits; such a greedy Appetite had they to practise against the State.

The rest of that which Mr. Attorney then spake continuedly, was by himself divided into three general Parts. The first containing certain Considerations concerning this Treason. The second Observations about the same. The third a Comparison of this Treason of the Jesuits, with that of the Seminary Priests, and that other of *Raleigh* and others.

For the Considerations concerning the Powder-Treason, they were in Number eight: That is to say, 1. The Persons by whom. 2. The Persons against whom. 3. The Time when. 4. The Place where. 5. The Means. 6. The End. 7. The secret contriving. And lastly, the admirable Discovery thereof.

1. For the Persons offending, or by whom, they are of two sorts; either of the Clergy, or Laity: and for each of them there is a several Objection made. Touching those of the Laity, it is by some given out, that they are such Men, as admit just Exception, either desperate in Estate, or base, or not settled in their wits; such as are *Sine Religione*, *Sine Sede*, *Sine Fide*, *Sine Re*, & *Sine Spe*; without Religion, without Habitation, without Credit, without Means, without Hope. But (that no Man, tho' never so wicked, may be wronged) true it is, they were Gentlemen of good Houses, of excellent Parts, howsoever most perniciously seduced, abused, corrupted, and jesuited, of very competent Fortunes and States. Besides that *Percy* was of the House of *Northumberland*, Sir *William Stanley*, who principally employed *Fawkes* into *Spain*, and *John Talbot* of *Grafton*, who at the least is in Case of Misprision of High-Treason, both of great and honourable Families. Concerning those of the Spirituality, it is likewise falsely said, That there is never a religious Man in this Action. For I never yet knew a Treason without a Romish Priest; but in this there are very many Jesuits, who are known to have dealt and passed thro' the whole Action: Three of them are Legiers and Statesmen, as *Henry Garnet* alias *Walley*, the Superior of the Jesuits, Legier here in *England*; Father *Creswell* Legier Jesuit in *Spain*, Father *Baldwyn* Legier in *Flanders*, as *Parsons* at *Rome*; besides their cursory Men, as *Gerrard*, *Oswald*, *Tesmond*, alias *Greeneway*, *Hammond*, *Hall*, and other Jesuits. So that the principal Offenders are the seducing Jesuits; Men that use the Reverence of Religion, yea, even the most sacred and blessed Name of *Jesus*, as a Mantle to cover their Impiety, Blasphemy, Treason and Rebellion, and all manner of Wickedness; as by the help of *Christ* shall be made most apparent to the Glory of *God*, and the Honour of our Religion. Concerning this Sect, their Studies and Practices principally consist in two D D's, to wit, in Deposing of Kings, and Disposing of Kingdoms: their Profession and Doctrine is a Religion of Distinctions, the greatest part of them being without the Text, and therefore in very deed, idle and vain conceits of their own Brains: not having *Membra dividenda*, that is, all the parts of the division warranted by the Word of *God*; and *ubi lex non distinguit, nec nos distinguere debemus*. And albeit that Princes hold their Crowns immediately of and from *God*, by Right of lawful Succession and Inheritance inherent by Royal Blood; yet think these Jesuits with a Goose-quill, within four distinctions to remove the Crown from the Head of any King christened, and to deal with them, as the old *Romans* are said to have done with their Viceroyes, or petty Kings, who in effect were but Lieutenants unto them, to crown and uncrown them at their pleasures. Neither so only, but they will proscribe and expose them to be butchered by Vassals, which is against their own Canons, for Priests to meddle in cause of Blood. And by this means they would make the Condition of a King far worse than that of the poorest Creature that breatheth. First saith *Simanca*; *Hæretici omnes ipso jure sunt Excommunicati, & à Communione fidelium diris proscriptionibus separati, & quotannis in cæna Domini excommunicantur à Papa*: So then every Heretick stands and is reputed with them as excommunicated and accursed, if not *de Facto*, yet *de Jure*, in Law and Right, to all their Intents and Purposes: therefore may he be deposed, proscribed and murdered. I, but suppose he be not a professed Heretick, but dealeth reservedly, and keepeth his Conscience to himself: how stands he then? *Simanca* answers, *Quæri autem solet an Hæreticus occultus excommunicatus sit ipso jure, & in alias etiam pœnas incidat contra Hæreticos statutas? Cui quæstioni simpliciter Jurisperiti respondent, quod etsi hæresis occulta sit, nihilominus occultus Hæreticus incidit in illas pœnas*. Whether he be a known or a secret Heretick all is one, they thunder out the same Judgment and Curse for both; whereas *Christ* saith, *Nolite judicare*, Judge not, which is, saith *Augustine*, *Nolite judicare de occultis*, of those things which are secret. But suppose that a Prince thus accursed and deposed, will estoons return and conform himself to their Romish Church, shall he then be restored to his State, and again receive his Kingdom?

Nothing less: For saith *Simanca*, *Si Reges aut alii Principes Christiani facti sint Hæretici, protinus subjecri & vassalli ab eorum dominio liberantur; nec jus hoc recuperabunt, quamvis postea reconcilientur Ecclesiæ*. O but, *Sancta Mater Ecclesia nunquam claudit gremium redeunti*; our Holy Mother the Church never shuts her Bosom to any Convert. It is true, say they, but with a Distinction, *Quoad Animam*: Therefore so he may, and shall be restored; that is, spiritually, in respect of his Soul's health. *Quoad Animam*, he shall again be taken into the Holy Church; but not *Quoad Regnum*, in respect of his Kingdom or State Temporal, he must not be restored. The reason is, because all hold only thus far, *Modo non sit ad damnum Ecclesiæ*, so that the Church receive thereby no detriment. I, but suppose that such an unhappy deposed Prince have a Son, or lawful and right Heir, and he also not to be touched or spotted with his Father's Crime, shall not he at the least succeed, and be invested into that princely Estate? Neither will this down with them; Heresy is a Leprosy and hereditary Disease: *Et ex leprosis parentibus leprosi generantur filii*; Of leprous Parents, come leprous Children. So that saith *Simanca*, *Propter Hæresum Regis, non solum Rex regno privatur, sed & ejus filii a regni successione pelluntur, ut noster Lupus* (who is indeed, *Vir secundum nomen ejus*, a Wolf as well in Nature as Name) *luculenter probat*. Now if a Man doubt whom they here mean by an Heretick, *Creswell* in his Book called *Philopater*, gives a plain Resolution; *Regnandi jus amittit* (saith he) *qui Religionem Romanam deserit*, he is the Heretick we speak of; even whosoever forsakes the Religion of the Church of *Rome*, he is accursed, deprived, proscribed, never to be absolved but by the Pope himself, never to be restored either in himself, or his Posterity.

One place amongst many out of *Creswell*'s *Philopater*, shall serve to give a Taste of the jesuitical Spirits and Doctrine; which is, *sect. 2. pag. 109. Hinc etiam infert universa Theologorum ac Jurisconsultorum Ecclesiasticorum, schola (& est certum & de fide) quomcumque Principem Christianum, si à Religione Catholica manifesto discesserit, & alios advocare voluerit, excidere statim omni potestate ac dignitate, ex ipsa vi juris tum humani tum divini, hocque antedictam sententiam supremi pastoris ac judicis contra ipsum prolatam, & subditos quoscumque liberos esse ab omni Juramenti obligatione, quod de obedientia tanquam Principi legitimo præstitissent; posseque & debere (si vires habeant) ipsiusmodi hominem tanquam Apostatam, Hæreticum, ac Christi Domini Desertorem, & Reipub. suæ inimicum hostemque ex hominum Christianorum dominatu ejicere, ne a iis inficiat, vel suo exemplo aut Imperio à fide avertat. Atque hæc certa, definita & indubitata virorum doctissimorum sententia*. That is, this inference also doth the whole School both of Divines and Lawyers make, (and it is a Position certain, and to be undoubtedly believed) that if any Christian Prince whatsoever, shall manifestly turn from the Catholic Religion, and desire or seek to reclaim other Men from the same, he presently falleth from all princely Power and Dignity; and that also by virtue and force of the Law itself, both divine and human, even before any Sentence pronounced against him by the supreme Pastor and Judge. And that his Subjects, of what Estate or Condition soever, are freed from all bond of Oath of Allegiance, which at any time they had made unto him as to their lawful Prince. Nay, that they both may and ought (provided they have competent Strength and Force) cast out such a Man from bearing Rule amongst Christians, as an Apostate, an Heretick, a Backslider and Revolver from our Lord *Christ*, and an Enemy to his own State and Commonwealth, lest perhaps he might infect others, or by his Example or Command turn them from the Faith. And this is the certain, resolute, and undoubted Judgment of the best learned Men. But *Tresham* in his Book, *De Officio Principis Christiani*, goeth beyond all the rest; for he plainly concludeth and determineth, that if any Prince shall but favour, or shew countenance to an Heretick, he presently loseth his Kingdom. In his fifth Chapter, he propoundeth this Problem, *An aliqua possit secundum Conscientiam subditis esse Ratio, cur legitimo suo Regi bellum sine scelere moveant?* Whether there may be any lawful Cause, justifiable in Conscience, for Subjects to take Arms without Sin, against their lawful Prince and Sovereign? The Resolution is, *Si Princeps hæreticus sit & obstinate ac pertinaciter intolerabilis, summi Pastoris divina potestate deponatur, & aliud caput constituitur, cui subditi se jungant, & legitimo ordine & autoritate tyrannidem amoveant. Princeps indulgendo hæreticos non solum Deum offendit, sed perdit & regnum & gentem*. Their Conclusion therefore is, that for Heresy, as above is understood, a Prince is to be deposed, and his Kingdom bestowed by the Pope at pleasure; and that the People, upon pain of Damnation, are to take part with him whom the Pope shall so constitute over them. And thus whilst they imagine with the Wings of their light-feathered Distinctions to mount above the Clouds and Level of vulgar Conceits, they desperately fall into a Sea of gross Absurdities, Blasphemy, and Impiety. And surely the Jesuits were so far engaged in this Treason, as that some of them stick not to say, that if it should miscarry, that they were utterly undone, and that it would overthrow the State of the whole Society of the Jesuits: And I pray *God* that in this, they may prove true Prophets, that they may become like the Order of *Templarii*, so called for that they kept near the Sepulchre at *Jerusalem*, who were by a general and universal Edict in one Day throughout Christendom quite extinguished, as being *Ordo Impietatis*, an Order of Impiety. And so from all Sedition and privy Conspiracy, from all false Doctrine and Heresy, from Hardness of Heart, and Contempt of thy Word and Commandment, Good Lord, deliver us. Their Protestations and Pretences, are to win Souls to *God*; their Proofs weak, light, and of no value; their Conclusions false, damnable, and damned Heresies: The first mentioneth *God*, the second favourer of weak and frail Man, the last of the Devil; and their Practice easily appeareth out of the Dealing of their Holy Father.

Henry III. of *France* for killing a Cardinal was excommunicated, and after murdered by *James Clement* a Monk: That Fact doth *Sixtus Quintus* then Pope, instead of orderly censuring thereof, not only approve, but commend in a long Consistory Oration. That a Monk, a religious Man, saith he, hath slain the unhappy French King in the midst of his Host, it is *rurum insigne, memorabile Facinus*, a rare, a notable, and a memorable Act; yea further, it is *Facinus non sine Dei optimi Maximi particulari providentia & dispositione, &c.* A Fact done not without the special Providence and Appointment of our good *God*, and the Suggestion and Assistance of his Holy Spirit; yea, a far greater work than was the slaying of *Holofernes* by Holy *Judith*.